

25VECV05046 25VECV05046

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 25VECV05046 Hearing Date: September 11, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARIANNE DENIS, an individual,

Plaintiff,

vs.

TARZANA ASSISTED LIVING, LLC; ATRIA SENIOR LIVING, INC.; ATRIA MANAGEMENT
COMPANY, LLC; IRMA ARTEAGA; NUNE GEZALIAN; and DOES 1 to 100,

Defendants.

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CASE NO.: 25VECV05046

ORDER

GRANTING DEFENDANT ATRIA

MANAGEMENT COMPANY, LLC'S

MOTIONS FOR RELIEF FROM WAIVER OF OBJECTIONS TO FORM INTERROGATORIES (SET ONE), SPECIAL
INTERROGATORIES (SET ONE), REQUESTS FOR ADMISSION (SET ONE), AND REQUESTS FOR
PRODUCTION (SET ONE)

I.

BACKGROUND

Plaintiff Marianne Denis

("Plaintiff") brings this action against Defendants Tarzana Assisted Living,
LLC ("Tarzana"), Atria Senior Living, Inc. ("Atria Senior Living"), Atria

Management Company, LLC ("Atria Management"), Irma Arteaga ("Arteaga"), Nune Gezalian ("Gezalian"), Doe 1 ("Walter"), and WG Tarzana, LP dba Atria Tarzana ("WG Tarzana") (collectively, "Defendants"). This action arises from the death of Plaintiff's spouse, Joseph Alexis Denis ("Decedent"), an employee at Defendants' senior living facility who suffered a fatal cardiac event while on an authorized meal break in a vacant, locked apartment to which he was given unauthorized access by a coworker ("Walter"), and was not discovered or aided for several hours due to alleged failures in key control, monitoring, and emergency response procedures by Defendants.

Atria Management moves for relief from waiver of objections to its Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Admission (Set One), and Requests for Production (Set One).

II.

PROCEDURAL HISTORY

On September 5, 2025, Plaintiff filed a Complaint alleging (1) Negligence (Wrongful Death) and (2) Negligent Hiring, Retention, and Supervision against Defendants.

On November 21, 2025, Plaintiff filed her First Amended Complaint alleging the same causes of action.

On December 8, 2025, the Court granted Plaintiff's request for dismissal of Tarzana Assisted Living, LLC.

On April 3, 2026, the Court sustained Defendants' Demurrer with leave to amend.

On April 17, 2026, Plaintiff filed her SAC alleging (1) Negligence (Wrongful Death), (2) Negligent Hiring, Retention, and Supervision, and (3) Negligent Undertaking.

On July 2, 2026, the Court sustained in part Defendants' Demurrer to the second cause of

action for negligent hiring, retention, and supervision with leave to amend and overrules Defendants' Demurrer to the first cause of action for negligence.

On August 5, 2026, Atria Management filed the instant Motions.

As of September 10, 2026, no opposition has been filed.

III.

LEGAL STANDARD

The trial court has broad discretion to grant relief from waiver of objections on a noticed motion upon determining that: (a) the moving party subsequently served discovery responses which are substantially code compliant; and (b) the moving party's failure to timely serve responses "was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc. §§ 2030.290(a), 2031.300(a), and 2033.280(a).)[1]

A court may not find that only some portions of a document containing responses are code-compliant but must instead determine whether the document as whole substantially complies. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 779-780.)^{1 2 3}

The statutory language "mistake, inadvertence, or excusable neglect" in the discovery statute should be interpreted using the same general principles developed in application of the identical language in section 473(b). (See *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 275.) Although the party moving for relief under section 473 has the burden to show the mistake, inadvertence, or neglect was excusable, any doubts as to that showing must be resolved in favor of the moving party. (See *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.)^{1 2 3}

IV.

ANALYSIS

Atria Management moves

for relief from waiver of objections as to its Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Admission (Set One), and Requests for Production (Set One). Atria Management's counsel, Wendy E. Coulston, attests her firm's staff inadvertently failed to move the discovery propounded to Atria Management on April 13, 2026, into the proper electronic file and to calendar a deadline corresponding to Atria Management's discovery. (See FROGs Declaration of Wendy E. Coulston filed August 5, 2026 ("Coulston Decl."), ¶ 3.) Coulston attests she did not discover this mistake until June 15, 2026. (See id., ¶ 15.) Coulston attests she conferred with Plaintiffs' counsel requesting an extension and confirmation that Atria Management's objections were preserved. (See id., ¶¶ 15-18, 24.) While preparing Atria Management's discovery responses Coulston sought extensions due to medical emergencies. (See id., ¶¶ 23.) Coulston served Atria Management's discovery responses on July 15, 2026. (See id., ¶ 28, Ex. T.) Atria Management brings these discovery motions because Plaintiffs' counsel did not confirm that Atria Management's objections were preserved. (See id., ¶¶ 24, 31.)

The Motions
are unopposed.

The Court
will grant the Motions. The Court finds Atria Management has shown its failure to serve timely discovery responses was due to counsel's inadvertence in failing to move the discovery propounded to Atria Management to a discovery folder, thereby failing to calendar a corresponding deadline or complete the discovery. After reviewing Atria Management's discovery responses, the Court finds they are substantially compliant such that relief is appropriate here. "Substantial compliance" doesn't mean free from issues. A response may be in substantial compliance and still the proper subject of a (later) motion to compel. A response is in substantial compliance if it is in the form expected for an answer to the given request and conveys some information.

Accordingly,
the Court GRANTS Atria Management's Motions for Relief from Waiver of Objections to its Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Admission (Set One), and Requests for Production (Set One).

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V.

CONCLUSION

Based on the foregoing, the Court GRANTS Atria Management's Motions for Relief from Waiver of Objections to its Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Admission (Set One), and Requests for Production (Set One).

IT

IS SO ORDERED.

DATED: September 11, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references
are to California codes unless stated otherwise.